

admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

10. 9:00 AM CASE NUMBER: L25-09728

CASE NAME: JPMORGAN CHASE BANK N.A. VS. ARLETTE ORDAZ

*HEARING ON MOTION FOR DISCOVERY FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED

FILED BY: JPMORGAN CHASE BANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed an Amended Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), on 3/11/26.

Plaintiff attached the particular facts at issue, numbered One through Eight, in Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

11. 9:00 AM CASE NUMBER: L25-11419

CASE NAME: CAPITAL ONE, N.A. VS. EDUARDO GARCIA

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO NOTICE OF MOTION AND MOTION TO VACATE JUDGMENT AND DISMISS ACTION WITHOUT PREJUDICE**

FILED BY: CAPITAL ONE, N.A.

TENTATIVE RULING:

Plaintiff filed a Motion to set aside a Default Judgment, filed on 1/29/26, and dismiss the matter without prejudice.

The Motion is unopposed.

Plaintiff filed a proof of service reflecting mail service of notice of the Motion on the Defendant.

Background

After Plaintiff filed Request for Entry of Default in the matter, on 1/7/26, and prior to the entry of judgment, Defendant filed a bankruptcy claim in federal court. Plaintiff did not learn of the bankruptcy case until after entry of judgment.